

M/S Shiv Ganga Aata Mill v. State of U.P.

Allahabad High Court · Division Bench · 2 December 2015 · WRIT - C No. 65378 of 2015 · **Writ disposed; Clause 6.5 objections to be decided in stipulated time**

HEADNOTE

A mill disputed electricity bills of Purvanchal Vidhyut Vitran Nigam Ltd. and said Clause 6.5 objections were already pending, required to be decided within seven days. The High Court did not examine the bills. Recording the licensee's statement that the objections would be decided, it disposed of the writ with a direction that the Power Corporation make all endeavours to decide the Clause 6.5 objections within the stipulated time.

FACTUAL SUMMARY

M/s Shiv Ganga Aata Mill challenged electricity bills raised by Purvanchal Vidhyut Vitran Nigam Ltd. Before the High Court it submitted that objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005 had been filed but remained undecided, though counsel said such objections must be decided within seven days. Counsel for the Power Corporation stated that the objections would be decided. The Division Bench disposed of the writ without examining the bills.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

decision of pending Clause 6.5 billing objections

HOLDING

Where the consumer has already filed objections to electricity bills under Clause 6.5 of the Electricity Supply Code, 2005 and those objections remain undecided, the writ petition is disposed of with a direction that the distribution licensee make all endeavours to decide the objections within the stipulated time; the bills are not examined on merits. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A mill disputed electricity bills of Purvanchal Vidhyut Vitran Nigam Ltd. and said Clause 6.5 objections were already pending, required to be decided within seven days. The High Court did not examine the bills.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILLS

The Court recorded that Clause 6.5 objections were pending and directed a time-bound decision; it did not examine the bills. ¶ 1